

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law and Motion Tentative Rulings
Hon. Stephanie L. Jamieson
Courtroom 8

627 W. 21st Street, Merced

Friday, July 31, 2026
8:15 a.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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24CV-03458	Paul Horta vs Whitton Family Funeral Service
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Motion to Tax Costs

Plaintiff's motion to tax costs is GRANTED IN PART and DENIED IN PART.

Plaintiff's motion to tax Item 4 is GRANTED IN PART. The Court finds the Luque deposition costs to be costs that are recoverable. The Court does not find that any "add-ons" were unreasonable and finds the costs were reasonably necessary to the conduct of the litigation. As to the travel expenses for the Luque deposition, it is conceded by Defendant that some claimed expenses cover meal costs that are not recoverable. Accordingly, the Court grants the motion to tax in the amount of \$23.86, which is half the documented meal cost. The remaining costs are reasonable and necessary as the deposition was an out-of-town deposition.

Plaintiff's motion to tax Item 5 is DENIED. Service of process costs are specifically allowable under Code of Civil Procedure section 1033.5, subdivision (a)(4).

Plaintiff's motion to tax Item 11 is GRANTED IN PART. Government Code section 68086, subdivision (d)(2) allows the court reporter fees to be recoverable as taxable costs by the

prevailing party where the court does not have an official court reporter. Here, the Merced Superior Court Local Rules state that no official court reporter will be provided. (Local Rule, rule 1(M)(1)(b).) The Local Rules also state that the parties may arrange to have one and that the costs are recoverable. (Local Rule, rule 1(M)(1)(d); rule 1(M)(2)(b).) However, as conceded by Defendant, this erroneously included costs for the transcript. Accordingly, the request to tax costs is **GRANTED** in the amount of \$106.63, which represents the transcript cost.

Plaintiff's motion to tax Item 14 is **DENIED**. The court requires electronic filing. (Local Rule, rule 2(E)(1).)

Defendant is awarded total costs of **\$12,594.97**.

26CV-03386 Petition of: Esthela Salmeron Santos

Order to Show Cause Re: Name Change

Appearance required. Appear to address status of publication and proof of service of the petition to change a minor child's name on the non-petitioning parent.

26CV-03799 James (JIMI) Perneti vs David Cooper

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and partially granted temporary restraining order on Respondent was filed July 22, 2026.

26CV-03852 Stephanie Cone vs Gregorio Venegas Sanchez

Order to Show Cause Re: Restraining Order

Appearance required. Proof of timely personal service of the notice of hearing and temporary restraining order on Respondent was filed July 14, 2026.
